

STATE OF NEW YORK

9742--A

Cal. No. 724

IN SENATE

April 2, 2026

Introduced by Sen. KAVANAGH -- read twice and ordered printed, and when printed to be committed to the Committee on Housing, Construction and Community Development -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the multiple dwelling law, in relation to the standards for openable windows in residential units

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 30 of the multiple dwelling law is amended by
2 adding a new subdivision 11 to read as follows:

3 11. (a) Notwithstanding any other provision of this chapter, for newly
4 developed residential units, including those created through the conver-
5 sion of non-residential buildings to residential use, any provisions of
6 this chapter requiring that windows be openable shall be deemed satis-
7 fied if the unit complies with the mechanical ventilation standards set
8 forth by the American Society of Heating, Refrigerating and Air-Conditi-
9 oning Engineers (ASHRAE) in ASHRAE Standard 62.1, Ventilation and
10 Acceptable Indoor Air Quality, ASHRAE Standard 62.2, Ventilation and
11 Acceptable Indoor Air Quality in Residential Buildings, or any successor
12 standard, as amended or updated.

13 (b) Nothing in this section shall prevent a local government or muni-
14 cipality where this chapter applies from enacting or enforcing any law,
15 code, or ordinance that imposes openable window requirements on residen-
16 tial units to ensure proper egress or to meet fire safety standards.

17 § 2. This act shall take effect on the ninetieth day after it shall
18 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11799-02-6